

Gee Cee Cycle Balls Pvt. Ltd. v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 24.5.2017 · WRIT - C No. 17548 of 2017; connected Civil Misc. Amendment Application No. 5 of 2023, Civil Misc. Delay Condonation Application No. 09 of 2026, and Civil Misc. Restoration Application No. 10 of 2026 · **Interlocutory order-sheet series; the underlying Supply-Code billing dispute was never decided on the merits. By its order of 24.5.2017 the Division Bench found the dispute to prima facie require scrutiny, directed a counter affidavit within six weeks and a rejoinder within two weeks, and stayed both recovery under the assessment bill (Annexure 11) and disconnection under the impugned order dated 10.3.2017, subject to the petitioner depositing the amount calculated by the respondent for the last three months from the date the dispute arose (9.12.2016) within ten days of demand and continuing to pay current bills. After a long procedural history the petition was disposed of / consigned to record for non-prosecution off the 'Oldest Pending Cases' Warning List (5.8.2025, Neutral Citation 2025:AHC:132157-DB) with liberty to seek recall, and was then restored to its original number, the disposal order being recalled, on sufficient cause (17.8.2026). The writ petition stands pending; no merits ruling has been delivered.**

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HEADNOTE

In a company consumer's challenge to an assessment bill said to have been raised on the difference between the consumer meter and the double-pole meter, the Division Bench did not decide the billing dispute but granted conditional interim protection. The petitioner invoked Clause 5.6 of the U.P. Electricity Supply Code, 2005 (only bills for the three months previous to the month in which the dispute arose being chargeable) to attack a nine-month assessment; the respondent relied on Clause 5.7 as inserted by the Electricity Supply Code (Fifth Amendment), 2005 (effective 24.7.2014), under which, where a working double-metering system exists, the double-pole/substation/audit meter reading governs billing on a per-day basis for the period between the last reading and replacement of the defective meter, the amended clause also permitting the three-month consumer/double-pole difference to be considered. Holding the issue prima facie to 'require scrutiny', the Court (24.5.2017) directed pleadings and stayed recovery under the assessment bill (Annexure 11) and disconnection under the order dated 10.3.2017, conditional on the petitioner depositing the amount the respondent calculated for the last three months from the date the dispute arose (9.12.2016) within ten days of demand and continuing to pay current bills. The competing readings of Clauses 5.6 and 5.7, the legality of the consumer/double-pole billing basis, and the lawfulness of the nine-month assessment were all left open. On the later procedural track, the petition was disposed of for non-prosecution off the Warning List (5.8.2025) with liberty to seek recall, and was then restored to its original number, the disposal order being recalled, on the Court finding sufficient cause for the delay and the non-appearance (17.8.2026); the petition remains pending.

FACTUAL SUMMARY

The petitioner, Gee Cee Cycle Balls Pvt. Ltd., a company, filed WRIT - C No. 17548 of 2017 in the Allahabad High Court against the State of U.P. and the electricity respondents (respondents 2 and 3), challenging an assessment bill and a disconnection order dated 10.3.2017. The dispute arose on 9.12.2016. The company contended that under the Electricity Supply Code, 2005 and various (unnamed) government circulars an assessment bill could not be raised on the basis of the difference between the consumer meter and the double-pole meter, and that Section/Clause 5.6 of the Code confined the chargeable period to the three months previous to the month in which the dispute arose, so that the respondents' nine-month bill (Annexure 11) was excessive and illegal. In reply the respondents relied on Clause 5.7 as amended by the Electricity Supply Code (Fifth Amendment), 2005 (effective 24.7.2014), under which, where a healthy double-metering system exists, the double-pole/substation/audit meter reading governs billing on a per-day basis for the period between the last reading and replacement of the defective meter, and which also permits the three-month consumer/double-pole difference to be considered. By order of 24.5.2017 (Krishna Murari and Ravindra Nath Kakkar, JJ.) the Division Bench found the issue prima facie to require scrutiny, directed a counter affidavit and rejoinder, and granted a conditional interim stay. The record that follows is a compiled series of order-sheet entries (with the coram changing across benches) running to 17.8.2026: pleadings were completed by 2018, an amendment application (Civil Misc. Amendment Application No. 5 of 2023) was allowed on 29.7.2024, the petition was disposed of for non-prosecution off the 'Oldest Pending Cases' Warning List on 5.8.2025 (Neutral Citation 2025:AHC:132157-DB) with liberty to seek recall, and on 17.8.2026 (Prakash Padia and Vivek Saran, JJ.) the Court condoned the delay, allowed the restoration application, recalled the 5.8.2025 order and restored the writ petition to its original number. The merits of the billing dispute remain undecided.

REUSABLE CONSTRUCTIONS

1. Where a Supply-Code billing dispute turns on genuinely competing clause readings - the consumer invoking Clause 5.6's three-month cap against a nine-month assessment raised on the consumer-meter/double-pole-meter difference, the licensee invoking the Fifth-Amendment Clause 5.7 (per-day double-pole/substation/audit reading, with the three-month difference also considered) - a Division Bench may hold the issue prima facie to 'require scrutiny' and grant interim protection rather than resolve the clause conflict at the threshold. **order of 24.5.2017**
2. Interim stay of recovery under a disputed assessment bill and of disconnection may be granted on terms: deposit of the amount the licensee calculates for the last three months from the date the dispute arose, within ten days of demand, coupled with continued payment of current bills as generated, pending final adjudication. **order of 24.5.2017**
3. A writ petition disposed of / consigned to record for non-prosecution off the 'Oldest Pending Cases' Warning List, with liberty to seek recall if the cause of action survives, can be restored to its original number and the disposal order recalled on sufficient cause shown for the non-appearance and for the delay in moving. **order of 5.8.2025; order of 17.8.2026**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

RATIO

Conditional interim stay of recovery and disconnection where the billing basis and period for a disputed assessment (Clause 5.6 three-month cap vs Fifth-Amendment Clause 5.7 double-pole reading) is prima facie arguable

QUESTION

Pending adjudication of a dispute over the correct billing basis and period under the Supply Code - the petitioner invoking Clause 5.6 (bills only for the three months previous to the month the dispute arose) against a nine-month assessment raised on the consumer-meter/double-pole-meter difference, the respondent invoking the Fifth-Amendment Clause 5.7 (per-day double-pole/substation/audit reading between last reading and replacement of the defective meter) - should recovery under the assessment bill and disconnection be stayed, and on what terms?

HOLDING

The Division Bench did not resolve the clause conflict; it held the issue prima facie required scrutiny, directed a counter affidavit within six weeks and a rejoinder within two weeks, and stayed both recovery under the assessment bill (Annexure 11) and disconnection under the impugned order dated 10.3.2017, subject to the petitioner depositing the amount the respondent calculates for the last three months from the date the dispute arose (9.12.2016) within ten days of demand and continuing to pay current bills as generated. The competing readings of Clause 5.6 and the amended Clause 5.7 were reserved for the final hearing. **order of 24.5.2017**

EVIDENCE *"the provisions contained in Section 5.6 of the Electricity Supply Code, 2005 provide that bills of previous three months prior to the month in which the dispute has arisen is liable to be charged. However, the respondents have wrongly calculated the bill for the last nine months."* **order of 24.5.2017**

EVIDENCE *"referring to Electricity Supply Code (Fifth Amendment), 2005 which came into effect on 24.7.2014, points out that in view of the amendment in clause 5.7, the period between the date of last reading and the date of replacement of the defective meter, where double metering system is available and is working in healthy condition, the reading of double pole meter/ substation meter/audit meter shall be considered for billing purposes on per day basis in that particular month."* **order of 24.5.2017**

EVIDENCE *"Prima facie, the issue raised before us requires scrutiny."* **order of 24.5.2017**

EVIDENCE *"recovery against the petitioner in pursuance to the assessment bill (Annexure 11 to the writ petition) as well as disconnection of the supply of electrical energy to the petitioner's company in pursuance of the impugned order dated 10.3.2017 shall remain stayed subject to condition that petitioner deposits the amount, to be calculated by the respondent for the last three months from the date when the dispute arose, i.e. 9.12.2016, within ten days from the date demand is raised."* **order of 24.5.2017**

FLAG Compiled order-sheet series with no printed pagination or continuous paragraph numbers (pin_basis is order date). This is an interlocutory holding (grant of conditional interim stay), not a ruling on the merits of the billing dispute.

INTERPLAY · OFFTOPIC::restoration-of-writ-after-non-prosecution

RATIO

Restoration of a writ petition disposed of for non-prosecution off the Warning List, and recall of the disposal order, on sufficient cause

QUESTION

Where a writ petition is disposed of / consigned to record for non-prosecution (none appearing on the revised call from the 'Oldest Pending Cases' Warning List) with liberty to seek recall if the cause of action survives, can it be restored to its original number and the disposal order recalled?

HOLDING

Yes. On a Delay Condonation Application and a Restoration Application, the Court (Prakash Padia and Vivek Saran, JJ., 17.8.2026) found the cause shown for the delay and for the non-appearance sufficient, condoned the delay, allowed the recall/restoration application, recalled the disposal order dated 5.8.2025 and restored the writ petition to its original number, the petitioner having stated that the writ petition still survives. order of 5.8.2025 (disposal, recalled); order of 17.8.2026 (recall and restoration)

EVIDENCE “Upon perusal of the record, it appears that no cause of action survives, and accordingly, the matter is consigned to record.” order of 5.8.2025

EVIDENCE “Accordingly the recall/restoration application is allowed and the order dated 05.08.2025 is recalled. The writ petition is restored to its original number.” order of 17.8.2026

FLAG Off-topic procedural holding (Article 226 restoration practice), not a Supply-Code ruling; recorded because it fixes the current status of the petition as pending.

PRINCIPLE TAGS

prima-facie-scrutiny-interim-protection-on-disputed-assessment A billing dispute resting on genuinely competing Supply-Code clause readings may be held prima facie to require scrutiny and met with interim protection and a direction for pleadings, rather than decided at the threshold. order of 24.5.2017

conditional-interim-stay-deposit-of-three-months-amount Recovery under a disputed assessment bill and disconnection stayed on condition of depositing the amount calculated for the last three months from the date the dispute arose and continuing to pay current bills. order of 24.5.2017

restoration-of-writ-after-non-prosecution-disposal A writ petition consigned to record for non-prosecution off the Warning List, with liberty to seek recall, can be restored and the disposal order recalled on sufficient cause for the non-appearance and the delay. order of 5.8.2025; order of 17.8.2026

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ASSESSMENT BILL'S BASIS - CHARGING ON THE DIFFERENCE BETWEEN THE CONSUMER METER AND THE DOUBLE-POLE METER - IS ILLEGAL UNDER THE ELECTRICITY SUPPLY CODE, 2005 AND THE UNNAMED GOVERNMENT CIRCULARS.

Recorded by the 24.5.2017 order only as prima facie requiring scrutiny; never adjudicated. order of 24.5.2017

NOT DECIDED — WHICH BILLING-PERIOD RULE GOVERNS: THE PETITIONER'S CLAUSE 5.6 READING (BILLS ONLY FOR THE THREE MONTHS PREVIOUS TO THE MONTH THE DISPUTE AROSE) OR THE RESPONDENT'S FIFTH-AMENDMENT CLAUSE 5.7 READING (PER-DAY DOUBLE-POLE/SUBSTATION/AUDIT READING FOR THE LAST-READING-TO-REPLACEMENT WINDOW, WITH THE THREE-MONTH CONSUMER/DOUBLE-POLE DIFFERENCE ALSO CONSIDERED).

Both readings were placed before the Court and left to the final hearing. order of 24.5.2017

NOT DECIDED — WHETHER THE NINE-MONTH ASSESSMENT ACTUALLY RAISED BY THE RESPONDENTS WAS LAWFUL OR EXCESSIVE UNDER EITHER VERSION OF THE CLAUSE.

Not decided; the interim order neither approved nor disapproved the quantum. order of 24.5.2017

NOT DECIDED — THE MERITS OF THE WRIT PETITION AS A WHOLE.

Never reached; the petition was disposed of for non-prosecution (5.8.2025) and then restored to pending status (17.8.2026) without any merits ruling. order of 5.8.2025; order of 17.8.2026

RELATED CASES — SEE ALSO

SCJ-2017 — Company consumer's challenge to a disputed assessment under Clause 5.6 of the 2005 Supply Code; same billing-period provision.

SCJ-1722 — Commercial consumer; shares Clause 5.6 on the permissible billing period for a disputed assessment.

SCJ-058 — Pvt. Ltd. company invoking Clause 5.6 against a disputed assessment bill; provision sibling.

SCJ-071 — Commercial consumer's Clause 5.6 billing/assessment dispute; provision sibling.

SCJ-064 — Company consumer; Clause 5.6 assessment/billing-period dispute; provision sibling.

SCJ-1361 — Clause 5.6 bill-dispute sibling under the 2005 Supply Code.

SCJ-2194 · Gee Cee Cycle Balls Pvt. Ltd. v. State of U.P. and 2 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.